

TRANSNATIONAL CRIME & THE LIMITS OF INTERNATIONAL JUSTICE

What the Epstein Case Reveals

A case study in cross-border exploitation, jurisdiction, and accountability

Group Presentation • May 2026

Our Central Question & Roadmap

Why is transnational sexual exploitation so hard to prosecute — and what do international law and cross-border cooperation need in order to work?

- Part 1 — Framing & the international scope of the case
- Part 2 — The international legal framework (Palermo Protocol, UNTOC, jurisdiction & extradition)
- Part 3 — Wealth, mobility, and the problem of "elite impunity"
- Part 4 — Accountability, transparency & lessons (incl. a Japan comparison)

This presentation centres victims and legal systems — not sensational detail.

SECTION 1 OF 4

Framing & the International Scope

Who Epstein was — and why this case crosses borders

01

Who Was Jeffrey Epstein?

- A US financier who built extraordinary wealth and a network of powerful international contacts.
- **2005–06:** A Palm Beach (Florida) police investigation into abuse of minors.
- **2008:** A controversial state plea deal; he registered as a sex offender.
- **2019:** Arrested on federal sex-trafficking charges in New York.

• Died in custody in August 2019 (ruled a suicide) — pending trial
The crime was global; the criminal case ended at one nation's border.

WHY HE MATTERS HERE

His death meant accountability had to be pursued through others — and across borders. The case became a test of how legal systems cooperate.

A Case That Spanned Two Decades

2008

Florida state plea deal — widely criticised as lenient.

2019

Federal trafficking charges in New York; death in custody.

2021

Ghislaine Maxwell convicted of sex-trafficking conspiracy.

2025

Document-release wave renews scrutiny and debate.

From a local plea bargain to a global question about justice, wealth and cross-border accountability.

Why This Is an International Story

- **Recruitment:** victims, including minors and foreign nationals, moved across borders.
- **Finance:** wealth held through offshore structures, obscuring ownership.
- **Property:** residences across the US, the US Virgin Islands and Paris.
- **Identity:** an expired passport bore his photo, a false name, and listed Saudi Arabia as residence.

• **Network:** associates spanning several countries and high
A global network meets national enforcement — and falls through the gaps.

THE CORE TENSION

The network was global, but criminal enforcement is national. That gap is the heart of our presentation.

02

SECTION 2 OF 4

The International Legal Framework

How international law addresses crime that crosses borders

What Makes a Crime "Transnational"?

- Committed in more than one state — or in one state but planned, directed or with effects in another.
- Trafficking in persons is a paradigm case: it inherently moves people, money and evidence across borders.
- Prosecuting it therefore requires more than one country's police, courts and laws to act together.
- This is exactly where domestic systems, built for domestic crime, come under strain.

The question is institutional, not just moral: can sovereign systems coordinate fast enough?

The Palermo Protocol (2000)

- **Full name:** UN Protocol to Prevent, Suppress and Punish Trafficking in Persons.
- First globally agreed definition of human trafficking.
- **Three elements:** the act, the means, and the purpose of exploitation.
- For children, the "means" element is not required — any recruitment for exploitation qualifies.
- Obliges states parties to criminalise trafficking in their domestic law.

It gives 190+ states a shared vocabulary — a precondition for cooperation.

UNTOC & Cross-Border Cooperation

- **Parent treaty:** the UN Convention against Transnational Organized Crime.
- The Palermo Protocol supplements it; the two operate together.
- Provides a framework for extradition, mutual legal assistance and joint investigations.
- Can serve as a legal basis for cooperation even where no bilateral treaty exists.
- Encourages asset confiscation and protection of victims and witnesses.

In short: the machinery for international cooperation already exists on paper.

Jurisdiction, Extradition & MLATs

- **Jurisdiction:** states may claim it by territory or by nationality of offender/victim.
- **Concurrent claims:** several states may have a right to prosecute the same conduct.
- **Extradition:** typically needs a treaty plus "dual criminality" (an offence in both states).
- **MLATs:** Mutual Legal Assistance Treaties move evidence, testimony and records across borders.
- **The friction:** requests are slow, can be refused, and stall when suspects are wealthy or well-connected.

The tools exist — but speed and political will decide whether they work.

Foreign Nationals & Quasi-Diplomatic Figures

- **Ghislaine Maxwell (UK):** convicted in 2021 of sex-trafficking conspiracy in a US court.
- **Prince Andrew:** settled a US civil claim in 2022 and later stepped back from royal titles.
- High status confers no criminal immunity — but it can create practical and diplomatic hurdles.
- Foreign nationality complicates arrest, extradition and the gathering of evidence abroad.

Stick to what is adjudicated: charges, a conviction, a settled civil case — not speculation.

03

SECTION 3 OF 4

Wealth, Mobility & Impunity

*How resources can delay — though not always defeat —
accountability*

Offshore Wealth & Global Mobility

- Offshore structures and trusts can obscure who really owns assets.
- Property in several jurisdictions provides places to live, store value and move between.
- Private travel reduces the friction and scrutiny of ordinary border crossings.
- Multiple identity documents — including the false-name passport — illustrate evasion capacity.
- Together these convert wealth into mobility, and mobility into delay.

None of this is unique to one man — it is how illicit elite wealth tends to behave.

"Elite Impunity": 2008 vs 2019

2008 — FLORIDA

- State-level plea deal
- Served ~13 months, with work release
- Non-prosecution agreement shielded others
- Victims said they were not consulted

2019 — FEDERAL (NY)

- Federal sex-trafficking charges
- Held without bail
- Treated as serious organised wrongdoing
- Case ended only with his death in custody

The same conduct, two very different responses — a decade apart.

Would Other Systems Have Acted Differently?

- **Adversarial vs inquisitorial:** France's investigating magistrates can drive cases differently from US prosecutors.
- **Victim participation:** some systems give victims a formal role earlier in proceedings.
- **Limitation periods:** how long after the abuse can charges still be brought?
- **Plea bargaining:** less central in many civil-law systems, changing the incentive to settle quietly.

Central question: would the UK, France or Japan have acted faster — or slower?

04

SECTION 4 OF 4

Accountability, Transparency & Lessons

Designing cross-border justice that actually protects victims

The 2025 Document-Release Wave

- US transparency legislation drove a large release of case-related documents.
- Intended to answer public demand for accountability and openness.
- **Survivors' concern:** the disclosures made it easy to identify those abused — but not those who may have been involved.
- A real tension emerges between public transparency and the privacy and safety of victims.

Transparency is not automatically just — its design determines who it protects.

Reform Proposals & a Japan Comparison

- Faster, better-resourced MLAT and extradition channels.
- Victim-centred disclosure rules that shield identities by default.
- Stronger cross-border asset tracing and recovery.
- Harmonised definitions so cooperation isn't blocked by mismatched laws.

JAPAN ANGLE

Japan has an anti-trafficking action framework and is assessed annually in the US State Department's TIP Report — a useful benchmark for how a non-Western system measures up on cross-border cooperation.

Better justice across borders is mostly an engineering problem, not a gap in principle.

Four Takeaways

01

Crime crosses borders — justice often doesn't.

Networks are global; enforcement is national.

02

The legal tools already exist.

Palermo & UNTOC provide the framework; coordination is the gap.

03

Wealth buys time, not immunity.

Mobility delayed — but did not finally prevent — accountability.

04

Transparency must protect victims.

Disclosure should expose enablers, not endanger survivors.

SELECTED SOURCES & INSTRUMENTS

Palermo Protocol (2000) · UN Convention against Transnational Organized Crime · US DOJ filings (US v. Epstein 2019; US v. Maxwell 2021) · US State Dept. Trafficking in Persons Reports · contemporary reporting on 2025 disclosures.